

**CHAPTER clix.**

An Act to confirm a Provisional Order made by the Board of Trade under the General Pier and Harbour Act 1861 relating to Cullen. [18th August 1911.] A.D. 1911.

WHEREAS a Provisional Order made by the Board of Trade under the General Pier and Harbour Act 1861 is not of any validity or force whatever until the confirmation thereof by Act of Parliament: 24 & 25 Vict.
c. 45.

And whereas it is expedient that the Provisional Order made by the Board of Trade under the said Act and set out in the schedule to this Act be confirmed by Act of Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Order as amended and set out in the schedule to this Act shall be and the same is hereby confirmed and all the provisions thereof in manner and form as they are set out in the said schedule shall from and after the passing of this Act have full validity and force. Confirmation
of Order in
schedule.

2. This Act may be cited as the Pier and Harbour Order Confirmation (No. 3) Act 1911. Short title.

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SCHEDULE.

CULLEN HARBOUR.

Cullen. *Order for the transfer from the Cullen Harbour Commissioners incorporated under the Cullen Harbour Orders 1884 and 1886 as confirmed by the Pier and Harbour Orders Confirmation Acts 1884 and 1886 and the Acts incorporated therewith of the undertaking known as the Cullen Harbour and certain lands and other subjects in the vicinity thereof to the Provost Magistrates and Councillors of the Royal Burgh of Cullen in the County of Banff to confer powers on the Town Council with reference to the holding maintenance management and improvement of the said Harbour and to authorise the Town Council to borrow money for the purposes of the said Harbour and otherwise and for other purposes.*

Preliminary.

Short title.

1. This Order may be cited as the Cullen Harbour Order 1911.

Commence-
ment of
Order.

2. This Order shall come into force upon the day when the Act confirming this Order is passed and that day is in this Order referred to as "the commencement of this Order."

Interpreta-
tion.

3.—(1) In this Order the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated with the Order have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Order the following words and expressions shall unless the context otherwise requires have the following meanings (that is to say):—

"The burgh" means the royal burgh of Cullen;

"The Town Council" means the provost magistrates and councillors of the burgh;

"The town clerk" means the town clerk of the burgh and includes any depute acting for him;

"The Harbours Act 1847" means the Harbours Docks and Piers Clauses Act 1847;

"The Police Acts" means the Burgh Police (Scotland) Acts 1892 to 1903;

"The Order of 1884" means the Cullen Harbour Order 1884;

"The Order of 1886" means the Cullen Harbour Order 1886;

“The commissioners” means the commissioners acting incorporated and defined by the Order of 1884; A.D. 1911.
Cullen.

“The existing harbour” means the harbour and all works powers privileges and things included within the limits of the harbour as defined by section 21 of the Order of 1884;

“The harbour” means and includes the existing harbour and the works by this Order authorised;

“The harbour undertaking” means and includes the harbour and the conveniences connected therewith and the right to levy rates tolls and all other rights conferred on or vested in the Town Council by this Order and the entire undertaking of the Town Council in connexion with the harbour;

“The harbour revenue” means and includes the rates tolls dues rents and other moneys and receipts which may be taken and received by way of income from or in respect of the harbour undertaking under the authority of this Order;

“The sheriff” means the sheriff of the counties of Aberdeen Kincardine and Banff or any of his substitutes;

“The sheriff clerk” means the principal sheriff clerk of the county of Banff.

(2) The following expressions used in the Harbours Act 1847 shall have the following respective meanings (that is to say):—

The expressions “packet boat” and “Post Office packet” mean respectively a vessel employed by or under the Post Office or the Admiralty for the conveyance under contract of postal packets as defined by the Post Office Act 1908 and the expression “Post Office bag of letters” means a mail bag as defined by the same Act. Provided that nothing in the Harbours Act 1847 or in this Order shall extend to exempt from rates or duties any such vessel as aforesaid if she also conveys passengers or goods for hire.

Undertakers.

4. The Town Council shall be the Undertakers for carrying this Order into execution. Undertakers.

Transfer of the Harbour &c.

5.—(1) From and immediately after the commencement of this Order the existing harbour and all the property heritable and moveable of every kind and all the powers authorities privileges rights jurisdictions obligations and exemptions at the commencement of this Order vested in or belonging to the commissioners in relation to or connexion with the existing harbour shall subject to all debts and liabilities of the commissioners in relation to or connexion with the existing harbour at the commencement of this Order be transferred to and vested in the Transfer of
harbour &c.
to Town
Council and
dissolution
of Harbour
Commis-
sioners.

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Town Council and shall be held used exercised and enjoyed by the Town Council subject to the provisions of this Order and the harbour commissioners shall as from the commencement of this Order be dissolved and cease to exist and be thenceforth freed and discharged from all liabilities claims demands actions suits or other proceedings present or future in relation to or connexion with the harbour harbour undertaking pertinents property powers authorities privileges rights jurisdictions obligations and exemptions.

Completion
of title of
Town Coun-
cil.

(2) For the purpose of completing the title of the Town Council to the existing harbour hereby transferred to them a copy of this Order shall be deemed to be a conveyance by the commissioners to the Town Council.

(3) All powers duties and liabilities of the commissioners at the commencement of this Order shall as from the commencement of this Order be transferred to and attach to and be exercised undertaken and discharged by the Town Council and the Town Council shall keep the commissioners indemnified against all liabilities in relation to or connexion with the existing harbour existing at the commencement of this Order.

Pending
causes and
rights of
action pre-
served.

6.—(1) All causes and rights of action or suit accrued before the commencement of this Order which are at the commencement of this Order in any manner enforceable by or against the commissioners shall be and remain as good valid and effectual by or against the Town Council as they would have been by or against the commissioners if the Act confirming this Order had not been passed.

(2) Nothing in this Order shall cause the abatement discontinuance or determination of or in anywise prejudicially affect any action suit or other proceeding at law commenced by or against the commissioners either solely or jointly with any company body or person before the commencement of this Order and then pending but the same may be continued prosecuted or enforced by or against the Town Council in lieu of and in substitution for the commissioners.

Officers &c.
of Harbour
Commis-
sioners to be
officers of
Town Coun-
cil.

7. All officers and servants who at the commencement of this Order are in the employment of the commissioners in connexion with the existing harbour shall from and after the commencement of this Order become officers and servants as the case may be of the Town Council with the same rights and subject to the same obligations and incidents in respect of such employment as they had or were subject to as the officers and servants of the commissioners and shall so continue unless and until they respectively are duly removed from such employment by the Town Council or the terms of their employment are duly altered by the Town Council but the provisions of this section shall not apply to the clerk of the commissioners whose term of office and employment shall come to an end and be determined at the commencement of this Order.

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*Limits.**Cullen.*

Limits.

8. The limits within which the Town Council shall have authority and within which the powers of the harbour-master and the power to levy rates may be exercised shall comprise that part of the Bay of Cullen in the Moray Firth below high-water mark which is within the following imaginary lines that is to say an imaginary line commencing at a point on the seashore two hundred and twenty yards or thereby westward from the Burn of Cullen and proceeding due north in a straight line for a length of three hundred and fifty yards and thence due east for a further length of one thousand and seventy yards and thence proceeding due south for a length of one hundred and twenty-seven yards till it reaches high-water mark of ordinary spring tides at a point on the shore one hundred and seventy yards or thereby eastward from the east end of the ropeworks of Cullen and those limits are in this Order referred to as "the limits of this Order."

9. A map or plan showing the limits of this Order having been signed in triplicate by an assistant secretary of the Board of Trade one copy thereof shall within two months after the commencement of this Order be deposited at the Board another copy thereof shall within the same period be deposited at the office of the sheriff clerk and the third copy thereof shall within the same period be deposited at the office of the Town Council. In case of any discrepancy between the limits of this Order as shown on the said map or plan and the limits of this Order as described in the last preceding section of this Order the said map or plan shall be deemed to be correct and shall prevail.

Deposit of
plan of har-
bour limits.*Acquisition of Lands.*

10. The Lands Clauses Acts (except so much thereof as relates to the purchase and taking of lands otherwise than by agreement and to the entry upon lands by the promoters of the Undertaking) are hereby incorporated with this Order and for the purposes of that incorporation the term "special Act" in those Acts shall mean this Order.

Incorpora-
tion of Lands
Clauses Acts.

11. For the purposes of the works authorised by this Order the Town Council may purchase by agreement and use all or such parts of the lands shown on the plan deposited for the purposes of this Order as they may think requisite for the purposes of those works.

Power to
take lands by
agreement.

12. The Town Council may (in addition to the lands by the last preceding section authorised to be taken by them) purchase by agreement and hold for extraordinary purposes any lands not exceeding in the whole three acres but nothing in this section shall exempt the Town Council from any proceedings for nuisance caused or permitted by them on land acquired by them under the power conferred by this section.

Lands for
extraordinary
purposes.

A.D. 1911.

*Cullen.*Power to
take servi-
tudes &c. by
agreement.

13. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and this Order grant any servitude right or privilege (not being a servitude right or privilege of water in which other persons than the grantors have an interest) required for the purposes of this Order in over or affecting any such land and the provisions of the said Acts with respect to lands and feu duties or ground annuals so far as the same are applicable in this behalf shall extend and apply to such grants and to such servitudes rights and privileges as aforesaid.

*New Works.*Construction
of new works.

14. Subject to the provisions of this Order and subject also to such alterations (if any) in the deposited plan and the deposited sections as the Board of Trade may require before completion of the works the Town Council may in the lines and situations and according to the levels shown on the deposited plan and sections so far as the same are shown thereon and within the limits of deviation shown on the said plan and sections make and maintain the works authorised by this Order.

Description
of new works.

15. The said works authorised by this Order are—

Work No. 1 The removal of the existing stone jetty ;

Work No. 2 The construction of a concrete jetty two hundred feet long and not less than six feet wide with a head thirty feet long and twenty feet wide parallel to the existing stone jetty and sixty feet north-east thereof ;

Work No. 3 Excavation of the cliff and bed of the inner harbour bounded on the north by Work No. 2 and on the east and south by Works Nos. 4 and 5 and on the west by the west pier to levels of eight feet and six feet below high-water mark of ordinary spring tides ;

Work No. 4 The construction of a dry rubble retaining wall commencing at the eastern extremity of Work No. 2 and extending approximately in a south and south-westerly direction for a distance of about four hundred and ten feet ;

Work No. 5 The construction of a path five feet wide on the harbour face of Work No. 4 with steps at each end to road ;

Work No. 6 The improvement of the expending beach at the eastern end of the outer harbour and the formation of a slip seventy feet in mean length leading from the road to the bed of the outer harbour situate on the east side of the said expending beach ;

Work No. 7 The construction of sheet piling on the inner face of the west pier over a length of three hundred and fifty feet measured from the shore end of the said pier.

16. In constructing the works by this Order authorised the Town Council may with the consent in writing of the Board of Trade deviate laterally to any extent within the lines of deviation marked on the deposited plan and may with the like consent deviate vertically to any extent.

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Power to deviate.

17. Any person who wilfully obstructs any person acting under the authority of the Town Council in setting out the lines of the works by this Order authorised or who pulls up or removes any poles or stakes driven into the ground for the purpose of setting out the lines of those works or defaces or destroys the works or any part thereof shall for each such offence be liable to a penalty not exceeding five pounds.

Penalty for obstructing construction of works.

18. The Town Council may subject to the provisions of this Order make purchase and maintain in connexion with the harbour all necessary footways carriageways approaches roads communications steps slips slipways sewers drains sluices culverts embankments walls fences railings groins sea defences aprons dams cuts jetties landing places quays wharves gates basins stages staithes gantries gridirons channels locks beacons buoys dolphins moorings pontoons floating docks and gas and water pipes electric light and power mains and other works conveniences and appliances necessary or convenient for or ancillary or incidental to carrying on the harbour undertaking to the best public advantage.

Power to make footways &c.

19.—(1) Subject to the provisions of this Order the Town Council may construct and maintain or take on feu or lease any warehouses offices sheds weighing machines cranes and other works buildings and conveniences which may be found necessary or convenient in connexion with the harbour for the accommodation of vessels and traffic landed at or embarked from the harbour and may also lay down and maintain lighting apparatus rails tramways sidings and turntables in or upon any of the piers or works forming part of the harbour or the lands connected therewith.

Power to construct or lease warehouses and other buildings tramways &c.

(2) A line of rails or tramway constructed under the powers of this Order shall not be used for the public conveyance of passengers unless and until it has been inspected and certified by the Board of Trade to be fit for that use.

20. Any electric lighting apparatus or other electric mains and works constructed or maintained under this Order shall be so constructed used and worked as to prevent any interference with telegraphic communication by means of any telegraphic line belonging to or used by the Postmaster-General.

For protection of telegraphic lines of Postmaster-General.

21. Nothing in this Act shall extend to or authorise any interference with any works on any undertaking within the meaning of the

For protection of electric light undertakers.

A.D. 1911. Electric Lighting Acts 1882 to 1900 to which the provisions of section 15 of the Electric Lighting Act 1882 apply except in accordance with and subject to the provisions of that section.

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Power to
maintain
dredgers &c.

22.—(1) Subject to the provisions of this Order the Town Council may maintain the harbour and with the consent of the Board of Trade may alter and improve the same.

(2) The Town Council may in connexion with the harbour dredge scour deepen excavate and improve the harbour and the entrances channels and approaches thereto to the extent necessary to secure a sufficient waterway and approach in and to the harbour for vessels using the same.

(3) All rock stone shingle sand mud and other materials dredged up or removed within the limits of this Order shall be the property of the Town Council and they may use appropriate sell or otherwise dispose of the same or lay down and use the same for the purposes of the harbour undertaking as they think fit Provided that no rock stone shingle sand mud or other material shall be laid down or deposited in any place below high-water mark without the consent in writing of the Board of Trade having first been obtained.

(4) All money arising from any sale or other disposition of any rock stone shingle sand mud and other materials under this section after payment of any expenses connected therewith shall be applied in the same manner as the harbour revenue is to be applied.

Power to
purchase and
hire dredgers
&c.

23.—(1) The Town Council may for the purposes of this Order provide purchase lease or hire such steam or other dredgers engines tugs lighters or other vessels diving bells tools plant or other materials as they may think fit and may demand and receive such reasonable sums for the use of the same as they may think fit and the sums so received shall be applied in the same manner as the harbour revenue is to be applied.

(2) The Town Council may from time to time in their discretion sell or dispose of any of the articles and things purchased under this section and the money realised by any sale thereof shall be applied towards carrying into effect any of the purposes of this Order to which capital is properly applicable.

Consent of
Board of
Trade to
works.

24. No part of the works by this Order authorised to be constructed or made below high-water mark shall be commenced without the consent in writing of the Board of Trade and those works shall be executed only in accordance with the terms of such consent.

Powers to
cease in cer-
tain events.

25.—(1) If within two years from the commencement of this Order the works authorised by this Order are not substantially commenced the powers given by this Order for executing those works or otherwise in relation thereto shall cease unless the time for the commencement of the works be extended by the special direction of the Board of Trade.

(2) If the works authorised by this Order after having been substantially commenced are virtually suspended for twelve consecutive months the powers by this Order given for executing those works or otherwise in relation thereto shall cease except as to so much of those works as has then been completed unless those powers are by the special direction of the Board of Trade continued and directed to remain in force for any period not exceeding five years from the commencement of this Order.

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(3) In either of the above cases a certificate from the Board of Trade to the effect that the works have not been substantially commenced or that they have been virtually suspended for twelve consecutive months shall for the purposes of this Order be conclusive evidence of the facts stated in such certificate.

Rates.

26.—(1) Sections 25 and 26 of the Harbours Act 1847 shall not be incorporated with this Order.

Power to
levy rates.

(2) From and after the commencement of this Order the Town Council may within the harbour subject and according to the provisions of this Order demand receive and recover for the use of the harbour and the conveniences connected therewith and in respect of vessels boats persons goods animals fish and things and for services described in the schedule to this Order any rates not exceeding those specified in that schedule.

27. The Town Council may confer vary or extinguish exemptions from and compound with any person with respect to the payment of rates or charges authorised by this Order but so that no preference be in any case given to any person over any other person using the works under the like circumstances and that anything done under this section shall not prejudice the other provisions of this Order.

Power to vary
exemptions
and com-
pound for
rates.

28. The Town Council may (so far as the rates specified in the schedule to this Order do not extend) demand and recover such rates or other consideration as they think reasonable for the use of any warehouse rails tramways sheds buildings yards weighing machines mooring posts cranes buoys works and conveniences belonging to or provided by the Town Council or in respect of any services rendered by them in connexion with the harbour undertaking.

Rates for
warehouses
&c.

29. If and so long as the Town Council shall make and maintain such provisions and appliances as may be necessary for furnishing to vessels resorting to the works a supply of pure and wholesome water they shall be entitled to make and recover such reasonable charge as they may think fit not exceeding the rate specified for that purpose in

Supply of
and rate for
water.

A.D. 1911. the schedule to this Order for pure and wholesome water supplied by them.
Cullen.

Master of
fishing vessel
to report
take of fish.

30.—(1) The master or owner of any vessel (not being a pleasure vessel) with a take or cargo of fish shall on the arrival of the vessel within the limits of this Order forthwith furnish to the collector of rates a true and accurate statement of his take or cargo of fish and the name of every person obtaining delivery thereof.

(2) If the master or owner of a vessel fails to comply with this section he shall for each offence be liable to a penalty not exceeding ten pounds.

Provision as
to collection
of rates on
white fish
and fresh
herrings.

31.—(1) The Town Council may levy demand recover and receive the rates for white fish and for fresh herrings direct from the sea and transhipped or unshipped within the limits of this Order either from the fish salesmen or auctioneers who dispose of such fish or from the person purchasing or receiving delivery of the same (otherwise than as carriers) from any vessel.

(2) Any such fish salesman auctioneer purchaser or receiver respectively shall be entitled to deduct the amount of such rates from the price at which such fish were sold or purchased and shall when required furnish the Town Council or the collector of rates with the true account under his hand of the quantity of such fish and verify the same by the production of his books accounts and other documents to the Undertakers or to the collector of rates.

(3) If any such fish salesman auctioneer purchaser or receiver shall when so required refuse or fail to give and verify such an account or shall give or subscribe a false account he shall be liable to a penalty not exceeding ten pounds for each offence.

Harbour-
master may
prevent
sailing of
vessels.

32. The harbour-master may prevent the removal or sailing from within the limits of this Order of any vessel in respect of which or of the goods imported or exported therein any rates are payable until evidence has been produced to him of the payment of those rates to the collector and in the case of a vessel with a take or cargo of fish until the master or owner of the vessel has given in the account of his take or cargo of fish required by this Order.

Certain fish-
ing vessels
under stress
of weather
exempt from
rates.

33. Fishing vessels belonging to countries with which for the time being treaties exist exempting from duties and port charges those vessels when forced by stress of weather to seek shelter in the ports or on the coast of the United Kingdom shall when forced by stress of weather to make use of the harbour and not breaking bulk while making use thereof be exempt from rates leviable under this Order.

Exemption
of lifeboat
crew.

34. All persons going to or returning from any lifeboat or using any apparatus for saving life and being persons either belonging to

the crew of the lifeboat or to the coastguard or being persons for the time being actually employed in saving life or in exercising or using the lifeboat or the apparatus for saving life and all persons brought ashore from any vessel in distress shall at all times have free ingress passage and egress to along and from the premises and works belonging to the Town Council.

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35.—(1) The rates to be received by the Town Council shall be adjusted by them in such manner that as far as possible the income of the harbour undertaking shall be sufficient and not more than sufficient for the purposes of the harbour.

Board of
Trade may
reduce rates.

(2) If at any time it appears to the Board of Trade from the annual account to be sent to them under this Order that the clear annual income derived from the rates leviable by the Town Council on the average of the then three last preceding years after payment of all expenses and outgoings exceeds the amount sufficient for the purposes of this Order the Board may if in their discretion they think fit reduce the rates leviable under this Order to such amounts as will be sufficient to provide the amount aforesaid and may again at any time raise the rates to any amount not exceeding the rates specified in the schedule to this Order.

Powers of Leasing.

36.—(1) The Town Council may with the previous consent in writing of and upon such terms conditions and restrictions and for such period as may be sanctioned by the Board of Trade lease to any company corporation or person (A) the entire harbour undertaking or (B) the rates and other charges authorised by this Order to be taken.

Power to
lease under-
taking or
rates.

(2) As from the date of any lease made under the last preceding subsection the lessee during the continuance of and to the extent provided in his lease shall have and may exercise all or any of the powers conferred upon the Town Council by this Order which the Town Council have or might exercise under this Order and shall be subject to all the liabilities and obligations to which the Town Council are subject and shall perform all the duties of the Town Council under this Order.

(3) No lease made under subsection (1) of this section shall be assignable without the previous consent in writing of the Board of Trade.

(4) The Town Council shall within one month after the date of any lease made under this section deposit a certified copy thereof respectively with the Board of Trade and shall as from the expiration of that month be liable to a penalty not exceeding twenty pounds for every week or part of a week during which they refuse or neglect to comply with this subsection.

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(5) No lease made under this section shall be made in consideration or part consideration of any fine premium or other capital sum.

(6) Nothing in this section shall exempt the Town Council from their obligation to keep and render accounts and as from the date of any lease made under this section all the provisions of the Acts incorporated with this Order and of this Order as to the keeping delivery and audit of accounts shall apply to and be binding upon as well the lessees as the Town Council and all moneys received by the Town Council under or in respect of any such lease shall be deemed to be moneys levied by virtue of and income received under this Order.

Power to
lease pavilions.

37. The Town Council may let for hire or lease for any term not exceeding seven years any sheds warehouses or other buildings separately from any other part of the undertaking to any company corporation or person upon such terms pecuniary or otherwise and under such restrictions and conditions as they think fit.

Finance.

Power to
Town Council to provide
moneys for
purposes of
Order.

38. The Town Council may and shall provide such moneys as may become necessary for the purposes of this Order or any of them and of the harbour undertaking and the maintenance management and improvement thereof and the payment of expenses in connexion therewith out of the revenue of the harbour undertaking or by means of the assessment by this Order authorised to be imposed and levied or any of them as the Town Council may think fit.

Power to
Town Council to impose
and levy
special rate.

39.—(1) Subject to the provisions of this Order the Town Council may if they think fit as from and after the fifteenth day of May first occurring after the commencement of this Order for the purposes mentioned in the last preceding section of this Order or any of such purposes and for the purpose of paying any expense of and connected with the raising of the same charge in equal proportion all owners and occupiers of lands or premises within the burgh with an assessment which shall be levied and recovered in the same manner as the general improvement rate authorised by the Police Acts is levied and recovered and all the provisions of those Acts with respect to the mode of imposing levying and recovering the general improvement rate shall *mutatis mutandis* extend and apply to the said assessment hereby authorised.

(2) The said assessment so leviable shall be in addition to any assessments levied by the Town Council under the Police Acts but shall not exceed one shilling and sixpence in the pound of the rateable value of the burgh.

40.—(1) The Town Council may from time to time borrow at A.D. 1911.
interest not exceeding five per centum per annum:—

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(A) For carrying into effect the purposes of this Order such sum or sums not exceeding ten thousand pounds as may be sanctioned by the Secretary for Scotland; and

Power to borrow.

(B) For paying the costs of this Order the amount necessary.

(2) In order to secure the repayment of money borrowed under this section and the payment of interest thereon the Town Council may mortgage or charge the assessment by this Order authorised to be levied or the harbour revenue or both of them.

41. The Town Council for the purpose of raising any money by this Order authorised to be borrowed may accept and take from any bank or banking company credit to such amount as they think expedient (not exceeding in the whole taken together with any sums borrowed on mortgage or charge under the last preceding section and for the time being remaining unpaid) the sum of ten thousand pounds exclusive of interest on a cash account to be opened and kept with such bank or banking company in the name of the Town Council according to the usage of bankers in Scotland.

Power to take credit from bank.

42. All moneys borrowed by the Town Council under this Order shall be repaid within the respective periods following (in this Order referred to as "the prescribed periods") (that is to say):—

Periods for repayment of money borrowed.

(A) As to the money borrowed for the purposes (A) mentioned in the section of this Order the marginal note whereof is "Power to borrow" within such period or periods as may be prescribed by the Secretary for Scotland:

(B) As to the money borrowed for the purposes (B) mentioned in the same section within five years from the commencement of this Order.

43. All money borrowed under this Order shall be applied only for the purposes for which capital money may properly be applied and not otherwise.

Application of borrowed money.

44. Any money borrowed under the provisions of this Order which shall be discharged otherwise than by means of a sinking fund or instalments may be re-borrowed by the Town Council from time to time if required for the purposes of this Order.

Power to re-borrow.

45. The provisions of the Police Acts and of any Acts amending the same as to the borrowing of money for the general purposes of those Acts shall in so far as applicable and not inconsistent with the provisions of this Order be incorporated with this Order and shall so far as aforesaid apply to the borrowing by the Town Council of the money which they are by this Order authorised to borrow and the

Incorporation of provisions of Police Acts.

A.D. 1911. mortgages or bonds to be granted by the Town Council for the purposes
Cullen. of this Order shall refer to the title of this Order Provided always
that in the event of repayment of money borrowed being made by
way of instalment the annual amount of such instalment shall be
sufficient to pay off the whole of such money so borrowed within the
prescribed periods.

Sinking fund. 46. The Town Council shall in the event of their borrowing other-
wise than by way of repayment by instalments within the prescribed
periods appropriate and set apart in every year out of the revenues
to be derived from the harbour and harbour undertaking and out of
the assessments to be levied as hereinbefore mentioned such a sum as
will with the accumulations thereof by way of compound interest be
sufficient to pay off the whole of the principal moneys borrowed under
this Order within the prescribed periods.

For appoint-
ment of a
judicial
factor.

47.—(1) The mortgagees in respect of money borrowed under this
Order may enforce payment of arrears of interest or principal and
interest due on their mortgages by the appointment of a judicial
factor.

(2) In order to authorise the appointment of a judicial factor in
respect of arrears of principal the amount owing to the mortgagees by
whom the application for a judicial factor is made shall not be less
than two hundred and fifty pounds in the whole.

(3) Sections 86 and 87 of the Commissioners Clauses Act 1847
shall be incorporated with this Order and in such sections the
“commissioners” shall mean the Town Council and the expression
“receiver” shall mean judicial factor and the expressions “mortgage”
and “mortgagee” shall respectively include any security for money
borrowed under this Order and the holder of any such security.

Protection
of lenders.

48. Any person lending or paying money to the Town Council
under this Order shall not be bound to require any further or other
evidence of the power of the Town Council to borrow the money
advanced by such person than such as is afforded by a certificate signed
by the clerk to the Town Council that the powers of borrowing conferred
on the Town Council by this Order are not being exceeded.

Contingency
fund.

49. The Town Council may if they think fit for the purpose of
forming and maintaining a contingency fund not exceeding at any time
the sum of one thousand pounds to meet any extraordinary claim or
demand or any unforeseen accident or extraordinary damage which may
happen or be caused to the harbour appropriate and set apart subject
to the provisions of this Order as to the application of the harbour
revenue any amount which they may think fit in any year out of the
harbour revenue and shall deposit any such amount in some joint stock

bank of issue in Scotland to be increased by accumulation in the way of compound interest or otherwise invested in securities in which trustees in Scotland may lawfully invest money (but not in securities of the Town Council) until required for any of the aforesaid purposes.

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50. The Town Council shall apply the harbour revenue and all moneys received for or in respect of the assessment by this Order authorised to be made for the purposes and in the order following and not otherwise (that is to say):—

Application
of rates.

- (1) In paying the costs of and connected with the preparation obtaining and confirming of this Order so far as those costs are not paid out of money borrowed under this Order :
- (2) In paying the expenses properly chargeable to revenue of carrying on managing and maintaining the harbour undertaking :
- (3) In paying any feu duties and rents payable in respect of the lands and property belonging to or leased by the Town Council in connexion with the harbour undertaking :
- (4) In paying year by year the interest on money borrowed under this Order :
- (5) In paying the instalments as they become due of any money borrowed under this Order and repayable by instalments :
- (6) In providing a sinking fund for the repayment of any money borrowed under this Order and not repayable by instalments :
- (7) In creating and maintaining if they think fit a contingency fund in manner specified in the section of this Act of which the marginal note is "Contingency fund" :
- (8) In repaying to the burgh all sums which have been provided by means or out of the assessment authorised by this Order to be levied and have been applied for the purposes of the harbour undertaking whether in respect of money borrowed or otherwise :
- (9) Subject to and after answering the purposes aforesaid the surplus revenue (if any) shall be applied by the Town Council in the general improvement of the harbour undertaking.

51.—(1) The Town Council shall keep an account of the harbour undertaking separate from the other accounts of the borough showing all moneys received on account of the harbour undertaking and all moneys expended thereon or in connexion therewith.

Separate
account of
harbour
undertaking
to be kept.

(2) In the application of section 96 of the Town Councils (Scotland) Act 1900 to such separate account as forming part of the yearly account

A.D. 1911. of the Town Council the expression "any person assessed or elector" and "any ratepayer or elector" occurring therein shall be deemed to include any person (A) who has advanced any money to the Town Council under the powers of this Order and to whom any part of such money or any interest thereon for the time being remains owing (B) who has during the year to which such separate account relates paid any rates tolls or dues for or in respect of the user of the harbour (C) who is otherwise interested in such separate account.

Annual
return to
Board of
Trade.

52.—(1) The Town Council within one month after the date when a copy of the annual account of the Town Council or abstract thereof is under section 96 of the Town Councils (Scotland) Act 1900 to be sent to the Secretary for Scotland shall send to the Board of Trade a copy of the separate account by the last preceding section of this Order required to be kept and section 16 of the General Pier and Harbour Act 1861 Amendment Act (25 & 26 Vict. c. 19) shall apply to and include any such account.

(2) The Town Council shall as from the expiration of the said period of one month be liable to a penalty not exceeding twenty pounds for each week or part of a week during which they refuse or neglect to comply with this section.

(3) Section 50 of the Harbours Act 1847 shall not be incorporated with this Order.

Byelaws.

Byelaws.

53.—(1) The byelaws which may from time to time be made by the Town Council in exercise of the power in that behalf conferred on them by section 83 of the Harbours Act 1847 may provide for imposing a penalty not exceeding forty shillings for the breach or non-observance of any of the byelaws.

(2) No byelaw shall come into operation until it has received the allowance and confirmation of the Board of Trade and that allowance and confirmation shall be sufficient for all purposes.

(3) Sections 84 and 85 of the Harbours Act 1847 shall not be incorporated with this Order.

Life-saving Apparatus.

Provision for
life-saving
apparatus.

54.—(1) Sections 16 to 19 of the Harbours Act 1847 shall not be incorporated with this Order.

(2) The Town Council shall whenever required by the Board of Trade provide at their own expense and to the satisfaction of the Board of Trade a site in or near the harbour and build on that site a

house or other proper accommodation for a lifeboat rocket apparatus and other life-saving apparatus. A.D. 1911.

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(3) If the Town Council fail to comply with this section they shall be liable to a penalty not exceeding ten pounds for every month during which the failure continues.

55. The officers of the coastguard and all other persons for the time being actually employed in connexion with the lifeboat or the apparatus for saving life may either permanently or temporarily without payment attach or cause to be attached to any part of the harbour spars and other apparatus for saving life and may also either in course of using or of exercising the apparatus for saving life fire rockets over the pier.

Life-saving apparatus may be attached to pier.

56. The Town Council shall at all times keep at convenient places at the harbour and in obedience to any requirements which may be made by the Board of Trade lifebuoys and lifelines in good order and fit and ready for use.

Lifebuoys to be kept.

Lights.

57.—(1) Before commencing the works authorised by this Order the Town Council shall apply to the Board of Trade for directions as to the lights to be exhibited and other means to be taken for preventing danger to navigation and shall in all respects obey any directions given upon that application or afterwards from time to time given as to the like matters by the Board of Trade during the construction of those works and compliance with the directions so given shall satisfy and be in place of every other statutory requirement as to lights during the construction of those works.

Lights during construction of works.

(2) The Town Council shall be liable to a penalty not exceeding ten pounds for every day during which they omit so to apply or refuse or neglect to observe or comply with any directions so given.

58.—(1) After completion or permanent discontinuance or abandonment of the works authorised by this Order the Town Council shall exhibit at the outer extremity of those works or the completed portions thereof or in such other places as may be required from sunset to sunrise and according to the requirements of the traffic and the season of the year such lights (if any) and shall take such other steps for the prevention of danger to navigation as shall from time to time be directed by the Commissioners of Northern Lights and shall apply to those commissioners for such directions.

Lights after completion of works

(2) The Town Council shall be liable to a penalty not exceeding ten pounds for every day during which they omit so to apply or refuse or neglect to observe or comply with any such direction.

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As to buoys
and lights in
case of decay
of works.

59.—(1) In case of injury to or destruction or decay of the works included in or connected with the harbour or any part thereof the Town Council shall lay down such buoys exhibit such lights or take such other means for preventing (as far as may be) danger to navigation as may from time to time be directed by the Commissioners of Northern Lights and shall apply to those commissioners for directions as to the means to be taken.

(2) The Town Council shall be liable to a penalty not exceeding ten pounds for every day during which they omit so to apply or refuse or neglect to observe or comply with any such directions.

Miscellaneous.

Application
of Harbours
Act 1847.

60. For all the purposes of the Harbours Act 1847 so far as applicable to the objects of this Order this Order shall be deemed the special Act.

Recovery of
penalties.

61. All penalties under this Order shall be recovered and applied as penalties are recoverable and applicable under the Harbours Act 1847.

Exemptions
and savings
for Govern-
ment Depart-
ments.

62. Sections 28 and 99 of the Harbours Act 1847 as incorporated with this Order shall apply to and for the benefit of any Government department in the same manner as they apply to and for the benefit of the Government departments specially named in those sections.

Local light-
house autho-
rity.

63. The Town Council shall within the limits of this Order be a local lighthouse authority for the purposes of the Merchant Shipping Act 1894.

Meters and
weighers.

64. The Town Council shall have the appointment of meters and weighers in and in connexion with the harbour.

Crownrights.

65. Nothing in this Order shall affect prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained shall authorise the Town Council to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or of the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners and Board are hereby respectively authorised to give).

66. The Order of 1884 and the Order of 1886 are hereby repealed. *Repeal.*

67. The harbour shall be deemed to be for all purposes within the royal burgh of Cullen in the county of Banff. *Harbour to be within royal burgh of Cullen.*

68. All costs charges and expenses of or incident to the preparing and obtaining of this Order shall be paid by the Town Council. *Costs of Order.*

SCHEDULE.

TABLE OF RATES.

I.—RATES ON VESSELS &C.

1. *Tonnage Rates.*

	£	s.	d.
For every vessel loading cargo for any port or place on the East Coast of Scotland including the Orkney and Shetland Islands per registered ton - - - - -	0	0	4
For every vessel discharging cargo from any port or place on the East Coast of Scotland including the Orkney and Shetland Islands per register ton - - - - -	0	0	4
For every vessel from a port or place on the East Coast of Scotland including the Orkney and Shetland Islands light or in ballast or windbound or not loading or discharging per register ton - - - - -	0	0	2
For every vessel loading cargo for any other port or place in Great Britain or Ireland per register ton - - - - -	0	0	6
For every vessel discharging cargo from any other port or place in Great Britain per register ton - - - - -	0	0	6
For every vessel from a port or place in Great Britain or Ireland not on the East Coast of Scotland or in the Orkney or Shetland Islands light or in ballast or windbound or not loading or discharging per register ton - - - - -	0	0	3
For every vessel loading cargo for an oversea port per register ton - - - - -	0	0	8

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	£	s.	d.
For every vessel discharging cargo from an oversea port per register ton - - - - -	0	0	8
For every vessel from an oversea port light or in ballast or windbound or not loading or discharging per register ton - - - - -	0	0	4
For every yacht not carrying goods or passengers for hire per register ton - - - - -	0	0	3

Boats or registered vessels carrying cargo other than fish to pay tonnage rates according to their capacity as above.

In the event of any vessel remaining in the harbour more than a week the above rates shall be payable for each week or part thereof after the first week unless wind-bound when one-half only of the above rates shall be payable.

2. Rates on Fishing Vessels.

For every boat engaged in the herring fishing as a composition in full of tonnage rates payable in advance:—

If under 15 tons register per month - - - - - 1 5 0

If 15 tons register or above per month - - - - - 1 10 0

For every boat engaged in the white fishing or other fishing other than the herring fishing as a composition for any fishing seasons payable in advance:—

If under 15 tons register per month - - - - - 0 10 0

If 15 tons register or above per month - - - - - 1 0 0

The above composition dues shall not apply to steam trawlers or steam liners of a gross tonnage of more than 30 tons and they shall not apply to boats or vessels of any description not engaged in fishing.

For every small boat for pleasure purposes using the harbour per week or part of a week - - - - - 0 2 0

For every boat loading or discharging herrings or white or other fish not paying the above composition dues:—

If under 15 tons register - - - - - 0 2 0

If 15 tons register or above - - - - - 0 3 0

For every boat engaged in the herring or white or other fishing windbound:—

If under 15 tons register - - - - - 0 1 0

If 15 tons register and above - - - - - 0 2 0

For every steam trawler or steam liner of a gross tonnage of more than 30 tons windbound - - - - - 0 3 0

For every boat or fishing vessel other than as above entering
the harbour:—

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If under 15 tons register - - - - - 0 2 0

If 15 tons register or above - - - - - 0 4 0

In the event of any boat or fishing vessel not paying
composition dues remaining in the harbour more than
24 hours the above rates shall be payable for each 24
hours or part thereof after the first 24 hours.

The above charges shall also be payable in respect of
any hull lying in the harbour for the purpose of being
completed or engined.

General Notes.

All rates on vessels when not otherwise provided to be paid before
leaving the harbour.

II.—RATES ON ANIMALS AND GOODS SHIPPED TRANSHIPPED OR UNSHIPPED AT THE HARBOUR.

Articles of Export or Import.	Weight or Measure.	Rates.
A.		s. d.
Aerated waters all kinds - - - - -	per ton - - - - -	1 8
Ale porter and beer - - - - -	per 50 gallons - - - - -	1 0
„ „ (bottled) - - - - -	per cwt. - - - - -	0 2
Alkali - - - - -	per ton - - - - -	1 6
Alum - - - - -	per cwt. - - - - -	0 1 ³ / ₄
Ammonia water - - - - -	per ton - - - - -	1 0
Anchors - - - - -	per ton - - - - -	5 0
Animalised carbon - - - - -	per ton - - - - -	1 0
Ashes - - - - -	per ton - - - - -	2 0
Asphalte or bitumen - - - - -	per ton - - - - -	1 3
B.		
Bacon or hams - - - - -	per ton - - - - -	3 4
Ballast - - - - -	per ton - - - - -	1 0
Barilla - - - - -	per ton - - - - -	3 0
Bark in bulk - - - - -	per ton - - - - -	2 6
Barrels empty herring - - - - -	each - - - - -	0 1
Barytes - - - - -	per ton - - - - -	1 6
Baskets under twelve inches diameter - - - - -	per dozen - - - - -	0 6
„ above „ „ - - - - -	per dozen - - - - -	1 0
Basket rods - - - - -	per cwt. - - - - -	0 2
Beef or pork (fresh or salt) - - - - -	per ton - - - - -	3 6
Beer black or spruce - - - - -	per 3 gallons - - - - -	0 2
Billiard tables - - - - -	per cwt. - - - - -	0 2
Bicycles or tricycles - - - - -	each - - - - -	0 3

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Articles of Export or Import.	Weight or Measure.	Rates.	
		s.	d.
Biscuits - - - - -	per ton - - - - -	3	0
Blacking - - - - -	per cwt. - - - - -	0	6
Bleaching salts - - - - -	per cwt. - - - - -	0	2½
Blood of cattle - - - - -	per ton - - - - -	1	0
Blubber - - - - -	per 252 gallons - - - - -	3	0
Boats and cobbles:—			
Under 12 feet keel - - - - -	each - - - - -	1	6
12 feet to 14 feet keel - - - - -	each - - - - -	2	0
14 " 16 " - - - - -	each - - - - -	2	6
16 " 18 " - - - - -	each - - - - -	3	0
18 " 20 " - - - - -	each - - - - -	3	6
20 feet keel and above - - - - -	each - - - - -	5	0
Bones (crushed or uncrushed) - - - - -	per ton - - - - -	1	6
Books and stationery - - - - -	per cwt. - - - - -	0	4
Boots - - - - -	per ton - - - - -	3	0
Bottles - - - - -	per cwt. - - - - -	0	4
" (broken) - - - - -	per ton - - - - -	0	6
Boxes (empty) - - - - -	each - - - - -	0	1
Boxwood - - - - -	per cwt. - - - - -	0	1¾
Bran - - - - -	per ton - - - - -	1	0
Brass - - - - -	per ton - - - - -	2	0
Bricks - - - - -	per 1000 - - - - -	1	0
Brimstone - - - - -	per ton - - - - -	2	0
Bristles - - - - -	per cwt. - - - - -	0	9
Brooms (common) - - - - -	per dozen - - - - -	0	2
Bulrushes - - - - -	per cwt. - - - - -	0	8
Butter - - - - -	per cwt. - - - - -	0	3
C.			
Calamine or zinc ore - - - - -	per ton - - - - -	1	0
Candles - - - - -	per ton - - - - -	3	6
Canvas - - - - -	per cwt. - - - - -	0	2
Carpets rugs and upholstery articles - - - - -	per ton - - - - -	2	6
Cane reeds - - - - -	per cwt. - - - - -	0	3
Carboys (empty) - - - - -	each - - - - -	0	1
Carriages with springs under 5 cwt. - - - - -	each - - - - -	2	6
" " 5 cwt. and under 7½ cwt. - - - - -	each - - - - -	5	0
" " 7½ cwt. and under 10 cwt. - - - - -	each - - - - -	7	6
" " 10 cwt. and above - - - - -	each - - - - -	10	0
Carrots - - - - -	per ton - - - - -	1	0
Carts and waggons without springs - - - - -	per ton - - - - -	2	6
Casks boxes sacks and kits empty except returned empties as provided for in the notes to this schedule - - - - -	each - - - - -	0	1
Cattle viz. :—			
Bulls cows and oxen - - - - -	each - - - - -	1	6
Calves - - - - -	each - - - - -	0	6
Horses - - - - -	each - - - - -	2	0
Ponies under 12 hands - - - - -	each - - - - -	1	0
Asses or mules - - - - -	each - - - - -	1	0
Pigs - - - - -	each - - - - -	0	6
Sheep and lambs and goats - - - - -	each - - - - -	0	3
Small cattle - - - - -	each - - - - -	0	8
Cattle foods and feeding stuffs not enumerated - - - - -	per ton - - - - -	3	0
Cement - - - - -	per ton - - - - -	1	6

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Articles of Export or Import.	Weight or Measure.	Rates.
		s. d.
Chalk - - - - -	per ton - - -	1 6
Cheese - - - - -	per ton - - -	3 0
Chimney tops - - -	each - - - - -	0 1
China - - - - -	per ton - - -	2 6
Chocolate - - - -	per cwt. - - -	1 0
Chrome ore - - - -	per ton - - -	1 0
Cider - - - - -	per 3 gallons -	0 0 $\frac{1}{2}$
Cinders and charcoal	per ton - - -	0 9
Clay viz. :—China or stone	per ton - - -	1 0
Clay pipes - - - -	per ton - - -	1 0
Clocks - - - - -	each - - - - -	1 0
Clothing haberdashery silk mercery &c. not other- wise enumerated	per ton - - -	3 0
Coals - - - - -	per ton - - -	1 0
Bunker coals - - -	per ton - - -	0 2
Cocoa - - - - -	per cwt. - - -	1 0
Cocoa nuts - - - -	per 100 - - -	0 4
Coffee - - - - -	per cwt. - - -	0 3
Coke - - - - -	per ton - - -	0 10
Confections of all kinds	per cwt. - - -	0 2
Copper - - - - -	per ton - - -	5 0
" old - - - - -	per ton - - -	2 0
" ore - - - - -	per ton - - -	1 0
Copperas - - - - -	per cwt. - - -	0 1 $\frac{3}{4}$
Coprolites - - - -	per ton - - -	1 0
Colours - - - - -	per cwt. - - -	0 1 $\frac{3}{4}$
Cordage - - - - -	per ton - - -	5 0
" old not in use	per ton - - -	1 0
Cork wood and corks	per ton - - -	6 6
Corn viz :—		
Barley and bigg - -	} per quarter - -	0 3
Bere - - - - -		
Beans - - - - -		
Indian corn - - -		
Malt - - - - -		
Oats - - - - -		
Pease - - - - -		
Rye - - - - -	} per quarter - -	0 4
Wheat - - - - -		
Cotton wool &c. - - -	per ton - - -	5 0
Crystal - - - - -	per ton - - -	5 0
Cutch - - - - -	per ton - - -	3 4
D.		
Dogs - - - - -	each - - - - -	0 6
Draff and dreg - - -	per ton - - -	0 4
Drugs - - - - -	per cwt. - - -	0 4
Dung - - - - -	per ton - - -	0 4
E.		
Earthenware - - - -	per ton - - -	2 6
Eggs - - - - -	per ton - - -	3 6
Emery and emery stones	per cwt. - - -	0 3
Esparto grass - - -	per ton - - -	1 0

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Articles of Export or Import.						Weight or Measure.		Rates.		
F.								s.	d.	
Feathers	-	-	-	-	-	per ton	-	10	0	
Felt	-	-	-	-	-	per ton	-	2	6	
Ferrets	-	-	-	-	-	each	-	0	1	
Fish dried smoked or cured	-	-	-	-	-	per ton	-	6	8	
„ pickled or salt	-	-	-	-	-					
„ fresh haddock cod ling and fish not enumerated	-	-	-	-	-					
„ large fresh cod ling and skate in the discretion of the harbour authority	-	-	-	-	-	per score	-	0	6	
(NOTE.—The harbour authority to have the option of charging on fish of all kinds 4d. per 1l. value in lieu of the rates above detailed.)										
Fish offal	-	-	-	-	-	per ton	-	0	6	
Flax	-	-	-	-	-	per ton	-	4	2	
Flour	-	-	-	-	-	per ton	-	2	8	
Flower roots	-	-	-	-	-	per cwt.	-	0	2	
Flint stones	-	-	-	-	-	per ton	-	0	6	
Fruit viz. :—										
Apples pears and berries	-	-	-	-	-	per cwt.	-	0	3	
Plums cherries and grapes	-	-	-	-	-	per cwt.	-	0	4	
Melons	-	-	-	-	-	per cwt.	-	0	2	
Peaches	-	-	-	-	-	per 100	-	0	2	
All not enumerated	-	-	-	-	-	per 10l value	-	0	10	
Furniture household	-	-	-	-	-	per ton	-	2	6	
Furriers' waste	-	-	-	-	-	per ton	-	0	4	
G.										
Game viz. :—										
Hares	-	-	-	-	-	each	-	0	2	
Rabbits	-	-	-	-	-	each	-	0	1	
All others	-	-	-	-	-	each	-	0	2	
Gelatine of scrows	-	-	-	-	-	per ton	-	2	0	
Ginger	-	-	-	-	-	per cwt.	-	0	3	
„ preserved	-	-	-	-	-	per cwt.	-	0	6	
Glass of all descriptions	-	-	-	-	-	per cwt.	-	0	2	
Glue	-	-	-	-	-	per cwt.	-	0	4	
Grates stoves &c.	-	-	-	-	-	per ton	-	3	6	
Grease	-	-	-	-	-	per ton	-	2	6	
Groceries all kinds not enumerated	-	-	-	-	-	per cwt.	-	0	3	
Gunpowder and other explosives	-	-	-	-	-	per cwt.	-	0	3	
Guano	-	-	-	-	-	per ton	-	1	6	
Gypsum ground	-	-	-	-	-	per ton	-	1	0	
„ unground	-	-	-	-	-	per ton	-	0	6	
H.										
Hair all kinds	{	baken	-	-	-	per cwt.	-	0	4½	
		plasterers'	-	-	-	per ton	-	2	0	
Hardware	-	-	-	-	-	per cwt.	-	0	2	
Hats	-	-	-	-	-	per dozen	-	0	5	
Hay	-	-	-	-	-	per ton	-	2	6	
Heading	-	-	-	-	-	per 1000	-	0	2	
Hemp	-	-	-	-	-	per ton	-	3	6	

Articles of Export or Import.	Weight or Measure.	Rates.
		s. d.
Herrings imported - - - - -	per 37 $\frac{1}{2}$ gallons - - -	0 4
„ exported - - - - -	per 26 $\frac{3}{4}$ gallons - - -	0 3
Hides raw - - - - -	per cwt. - - - - -	0 4
Honey - - - - -	per cwt. - - - - -	0 3
Hoops of wood - - - - -	per 1000 - - - - -	0 10
Hops - - - - -	per cwt. - - - - -	0 6
Horns slugs and tips - - - - -	per 1000 - - - - -	1 8
Husbandry implements viz. :—		
Ploughs - - - - -	each - - - - -	0 9
Harrows - - - - -	per pair - - - - -	0 9
Wheelbarrows - - - - -	each - - - - -	0 4
Other implements - - - - -	per ton - - - - -	2 6
I.		
Ice - - - - -	per ton - - - - -	1 0
Iron viz. :—		
Bar plate bolt and rod - - - - -	per ton - - - - -	2 0
Forged - - - - -	per ton - - - - -	3 4
Hoops - - - - -	per ton - - - - -	3 9
Made work - - - - -	per ton - - - - -	5 0
Old - - - - -	per ton - - - - -	1 3
Old and broken goods - - - - -	per ton - - - - -	0 6
Pots - - - - -	each - - - - -	0 1
Cast-iron goods - - - - -	per ton - - - - -	2 6
Wire - - - - -	per cwt. - - - - -	0 4
Ore - - - - -	per ton - - - - -	0 2
Pig - - - - -	per ton - - - - -	1 0
J.		
Junk or old ropes - - - - -	per ton - - - - -	1 0
Jute - - - - -	per ton - - - - -	1 0
K.		
Kelp - - - - -	per ton - - - - -	1 0
Kiln pavement - - - - -	per 30 feet - - - - -	0 4
L.		
Lard - - - - -	per ton - - - - -	2 0
Lead - - - - -	per ton - - - - -	3 0
„ black - - - - -	per ton - - - - -	2 0
„ ore - - - - -	per ton - - - - -	2 0
„ red and white - - - - -	per ton - - - - -	2 0
„ shot - - - - -	per ton - - - - -	3 0
„ sugar of - - - - -	per cwt. - - - - -	0 2
Leather tanned and dressed - - - - -	per cwt. - - - - -	0 3
Lemons - - - - -	per cwt. - - - - -	0 4
Lime - - - - -	per ton - - - - -	0 10
Linen yarn - - - - -	per ton - - - - -	2 6
Linseed - - - - -	per ton - - - - -	1 0
Loam - - - - -	per ton - - - - -	0 4
Locust beans whole or ground - - - - -	per ton - - - - -	1 0

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Articles of Export or Import.	Weight or Measure.	Rates.
M.		
Machinery	per cwt.	s. d. 0 2
Madder ground	per ton	2 6
Madder root	per ton	2 6
Manganese	per ton	1 0
Mangold wurzel	per ton	0 6
Manures manufactured and not otherwise enumerated	per ton	1 6
Matches	per ton	2 0
Mats and basses	per dozen	0 1
Meal viz. :—		
Bere meal	per ton	1 6
Maize meal		
Oatmeal		
Peasemeal		
Mill waste	per ton	2 0
Molasses	per ton	2 0
Moss litter	per ton	1 0
Mussels	per ton	0 6
Musical instruments not enumerated	per ton	2 6
N.		
Nails iron or copper	per ton	1 0
Nuts all kinds (except cocoa)	per cwt.	0 3
Nutmeg	per ton	2 3
O.		
Oakum	per ton	3 0
Ochre	per cwt.	0 1½
Oil all kinds	per ton	3 0
Oilcake	per ton	3 0
Onions	per cwt.	0 3
Oranges	per cwt.	0 4
Oysters	per cwt.	0 3
P.		
Peats	per ton	0 6
Paper	per cwt.	0 2
Pewter	per ton	2 0
old	per ton	1 8
Pianoforte	per 10% value	1 0
Pictures under two feet square	each	0 6
two feet and under four feet	each	1 0
four feet and upwards	each	2 0
Pigs' heads	per cwt.	0 0¼
Pipes drain under three inches diameter	per 1,000	0 6
above	per 1,000	0 9
collars	per 1,000	0 3
spigot and faucet clay glazed	per ton	1 0
(NOTE.—Drain tiles and mugs one-third less.)		
Pipes tobacco	per cwt.	0 4
Pitch	per cwt.	0 2
Plaster of Paris	per ton	2 8

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Articles of Export or Import.	Weight or Measure.	Rates.
		s. d.
Plants nursery and garden all kinds - - -	per cwt. - - -	0 4
Potatoes - - - - -	per ton - - -	1 4
Poultry all kinds - - - - -	each - - -	0 1
Provisions preserved all kinds - - -	per cwt. - - -	0 2
Pumice stones - - - - -	per cwt. - - -	0 3
Pyrites - - - - -	per ton - - -	0 6
„ burned or spent - - - - -	per ton - - -	0 3
R.		
Rags - - - - -	per ton - - -	2 0
Rails composite steel or iron - - -	per ton - - -	1 0
Rice - - - - -	per cwt. - - -	0 2
Rosin - - - - -	per ton - - -	2 6
S.		
Saddlery all kinds - - - - -	per cwt. - - -	0 3
Sails - - - - -	per cwt. - - -	0 6
Salt in bulk - - - - -	per ton - - -	1 0
„ rock - - - - -	per ton - - -	0 9
„ saltpetre and Glauber salt - - -	per ton - - -	3 4
„ in barrel including dues of barrel - -	per ton - - -	1 4
Salmon - - - - -	per cwt. - - -	0 6
Seed viz. :—		
Rape and flax - - - - -	per cwt. - - -	0 3
Clover - - - - -	per cwt. - - -	0 3
Garden seeds - - - - -	per cwt. - - -	0 3
Hemp and canary - - - - -	per cwt. - - -	0 3
Rye grass - - - - -	per ton - - -	3 4
Shoes of all kinds - - - - -	per ton - - -	3 0
Sheep skins with wool - - - - -	per cwt. - - -	0 3
„ pelts - - - - -	per cwt. - - -	0 2
Slates large - - - - -	per 1,000 - - -	1 4
„ sizeable - - - - -	per 1,000 - - -	0 10
„ small - - - - -	per 1,000 - - -	0 6
Snuff - - - - -	per cwt. - - -	0 6
Soap - - - - -	per ton - - -	2 0
Soda - - - - -	per ton - - -	1 6
Spades or shovels - - - - -	per dozen - - -	0 1
Spirits of all kinds - - - - -	per 50 gallons - - -	1 0
Starch - - - - -	per cwt. - - -	0 3
Steel - - - - -	per ton - - -	3 0
Straw - - - - -	per ton - - -	1 0
Stones viz. :—		
Freestone building - - - - -	per ton - - -	0 5
Polished granite - - - - -	per ton - - -	2 6
Causeway granite or whinstone - - -	per ton - - -	0 3
Kerb pavement and building - - -	per ton - - -	0 5
Rubble and chips - - - - -	per ton - - -	0 2
Rigging stones - - - - -	per 100 feet - - -	1 6
Flagstones - - - - -	per ton - - -	0 9
Gravestones - - - - -	each - - -	3 0
Marble - - - - -	per ton - - -	3 0

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Articles of Export or Import.	Weight or Measure.	Rates.
Stones—continued.		<i>s. d.</i>
Scythe stones - - - - -	per cwt. - - - - -	0 2
Grindstones - - - - -	each - - - - -	0 4
Millstones - - - - -	each - - - - -	3 0
All other descriptions except flint - - - - -	per ton - - - - -	1 0
Stucco - - - - -	per ton - - - - -	1 8
Sugar raw - - - - -	per ton - - - - -	2 8
„ refined - - - - -	per ton - - - - -	3 4
Stoneware all kinds - - - - -	per cwt. - - - - -	0 2
T.		
Tallow - - - - -	per ton - - - - -	3 0
Tanners's waste - - - - -	per ton - - - - -	1 1
Tar coal - - - - -	per 39 gallons - - - - -	0 4
„ Archangel - - - - -	per 26½ gallons - - - - -	0 4
Tares - - - - -	per ton - - - - -	1 6
Tea - - - - -	per cwt. - - - - -	0 6
Terra alba or sulphite of lime - - - - -	per ton - - - - -	1 0
Tiles roofing - - - - -	per 1,000 - - - - -	1 0
Tin of all kinds - - - - -	per ton - - - - -	2 0
„ plates - - - - -	per ton - - - - -	2 0
Tobacco in leaf - - - - -	per cwt. - - - - -	0 2½
„ manufactured - - - - -	per 100 lbs. - - - - -	0 4½
„ stalks - - - - -	per cwt. - - - - -	0 3
Tongues smoked - - - - -	per dozen - - - - -	0 1½
„ pickled - - - - -	per cwt. - - - - -	0 4
Toys - - - - -	per cwt. - - - - -	0 3
Turnery - - - - -	per 10 <i>l.</i> value - - - - -	0 10
Turnips - - - - -	per ton - - - - -	0 6
Turpentine - - - - -	per cwt. - - - - -	0 2
Twine - - - - -	per cwt. - - - - -	0 3
Tow all kinds - - - - -	per ton - - - - -	3 0
U.		
Umber - - - - -	per ton - - - - -	1 0
V.		
Vases or sculptured marble - - - - -	per cwt. - - - - -	0 3
Vinegar - - - - -	per 56 gallons - - - - -	1 0
Vitriol and acids - - - - -	per cwt. - - - - -	1 0
Varnish - - - - -	per cwt. - - - - -	0 2
Veneers all kinds - - - - -	per cwt. - - - - -	0 4
Vegetables - - - - -	per ton - - - - -	0 6
W.		
Wax paraffin - - - - -	per ton - - - - -	2 0
Whalebone or whalefins - - - - -	per ton - - - - -	3 4
Wheels coach carriage or cart - - - - -	per pair - - - - -	0 9
Whitening - - - - -	per ton - - - - -	0 10
Willow reeds - - - - -	per cwt. - - - - -	0 2
Wine - - - - -	per gallon - - - - -	0 0½
„ bottled - - - - -	per cwt. - - - - -	0 6
Wire rope - - - - -	per ton - - - - -	1 6

Articles of Export or Import.	Weight or measure.	Rates.	A.D. 1911. Cullen.
		s. d.	
Wood viz. :—			
Fir larch beech oak ash elm and all other hard woods rough or round or in plank or sided -	per 50 cubic feet -	1 0	
Masts and spars - - - - -	per 50 cubic feet -	1 0	
Fir deals planks and boards or battens -	per 50 cubic feet -	1 0	
Railway sleepers - - - - -	per 50 cubic feet -	1 0	
Lathwood sawn - - - - -	per 1,000 superficial feet - - - - -	1 0	
Cartwheel spokes and felloes - - - - -	per 40 pieces - - - - -	0 3	
Wedges - - - - -	per 1,000 pieces - - - - -	1 0	
Pitprops not exceeding 6 inches in average diameter - - - - -	per 50 cubic feet -	0 9	
Wainscot - - - - -	per 50 cubic feet -	1 3	
Deal ends 3 inches thick and under 4 feet in length and firewood - - - - -	per 50 cubic feet -	0 6	
Rickers under 30 feet in length and under 4 inches diameter - - - - -	per dozen - - - - -	0 3	
Oars - - - - -	per dozen - - - - -	0 4	
Handspokes - - - - -	per dozen - - - - -	0 4	
Treenails - - - - -	per 1,000 - - - - -	1 6	
Wood by weight :—			
Bar wood box wood Brazil wood cam wood ebony fustic lignum vitæ logwood Nicaragua wood red wood sassafras &c.	per ton - - - - -	2 0	
Mahogany - - - - -	per 40 cubit feet or ton - - - - -	2 0	
Wood staves and billets :—			
Herring barrel billets - - - - -	per 50 cubit feet -	1 8	
Herring barrel staves - - - - -	per 1,000 superficial feet - - - - -	1 2	
Wood of all other kinds not enumerated - - - - -	per £ value - - - - -	0 4	
Wood pulp - - - - -	per ton - - - - -	1 6	
Wool - - - - -	per ton - - - - -	5 0	
Y.			
Yarn viz. :—			
Lint and cotton - - - - -	per ton - - - - -	4 6	
Hemp - - - - -	per ton - - - - -	3 6	
Worsted - - - - -	per ton - - - - -	4 6	
Yeast - - - - -	per ton - - - - -	2 0	
Z.			
Zinc - - - - -	per ton - - - - -	2 0	

All goods or articles not enumerated in the above table of rates 2d. per cwt.

All rates on goods to be shipped to be paid before shipment and all rates on goods to be unshipped to be paid before removal.

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Exemptions &c. from Rates.

1. All empty boxes barrels sacks and packages returned to the original shipper within three months from date of import are exempted from rates.

2. All goods landed from any vessel and re-shipped in the same or another vessel in the original packages and without being transferred from the lander or if the said goods have been put into other packages through the original packages having been destroyed or damaged shall only pay rates on landing and may be re-shipped in the same or another vessel upon her departure outwards without paying rates again.

3. If any goods for which rates shall have been paid when loaded shall from any accident or otherwise be unloaded no rate shall be charged a second time for such goods on being re-loaded.

4. Goods of all descriptions rated by weight shall be charged according to gross weight fractional parts of any weight measure number or value shall be charged proportionately and the minimum charged for a single package shall be one penny.

III.—RATES ON PASSENGERS AND PASSENGERS' LUGGAGE LANDED
OR EMBARKED WITHIN THE HARBOUR.

	£	s.	d.
For every person above 12 years of age landing from or embarking in any vessel	0	0	2
For every person under 12 years of age with parent guardian master or servant	0	0	1
Children in arms free.			
Servants going for or with luggage free.			
For each article of passengers' luggage not carried by themselves	0	0	1
For every master or member of the crew of any vessel boat or wherry using the harbour for the purpose of going to or returning from his vessel boat or wherry for each time	0	0	1
Or an annual sum payable in advance not exceeding	0	10	0

Provided always that the master and every member of the crew of any vessel boat or wherry which comes within the harbour and in respect of which rates have been paid under this Order shall be entitled to use the harbour for the purpose of landing from or embarking to his vessel boat or wherry free of charge.

IV.—RATES FOR THE USE OF SHEDS CRANES WEIGHING
MACHINES WARPS &C.

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*Cullen.*1. *Sheds.*

For each ton of goods which shall remain in any shed or on any quay or pier for a period not exceeding 24 hours the sum of 3*d.* and the sum of 1½*d.* per ton for each day or part of a day during which such goods shall remain after the first 24 hours.

2. *Cranes.*

	s.	d.
All goods or packages not exceeding 1 ton - - -	0	3
Exceeding 1 ton and not exceeding 2 tons - - -	0	4
Exceeding 2 tons and not exceeding 3 tons - - -	0	6
Exceeding 3 tons and not exceeding 4 tons - - -	0	8
Exceeding 4 tons and not exceeding 5 tons - - -	0	10
Exceeding 5 tons and not exceeding 6 tons - - -	1	0
Exceeding 6 tons and not exceeding 7 tons - - -	1	2
Exceeding 7 tons and not exceeding 8 tons - - -	1	4
Exceeding 8 tons and not exceeding 9 tons - - -	1	8
Exceeding 9 tons and not exceeding 10 tons - - -	2	0
Exceeding 10 tons - - -	3	0

3. *Weighing Machines.*

For potatoes salt and coals each ton or part of a ton - - -	0	4
Goods in quantities of 20 tons and upwards of same cargo per ton - - - - -	0	3
Other goods per ton or part of a ton - - - - -	0	6

4. *Warps or Planks.*

Harbour warps all vessels per register ton - - -	0	0¼
Harbour planks long per pair - - - - -	3	0
Harbour planks short per pair - - - - -	1	0

The long planks to be paid for by vessel and short planks by merchant.

5. *Water Money.*

For each 25 gallons or part of 25 gallons of pure and whole- some water supplied to any vessel or boat - - -	0	1½
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6. *Harbour Lights.*

For every fishing boat under 30 tons payable in advance per season - - - - -	2	6
For every fishing boat of 30 tons or above payable in advance per season - - - - -	5	0

[Ch. clix.] *Pier and Harbour Order* [1 & 2 GEO. 5.]
Confirmation (No. 3) Act, 1911.

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For all other boats each -	-	-	-	-	-	s.	d.
						0	6
For every ship entering the harbour per register ton -	-	-	-	-	-	0	0 $\frac{1}{4}$
But rates for lights shall only be demanded and received when they have been provided and so long as a light or lights are duly exhibited during the proper hours.							

7. *Ballast.*

For all ballast supplied by the Harbour Authority to vessels or discharged from vessels within the harbour per ton -	-	-	1	0
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